

STATE OF NEW YORK

622--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. KIM, COLTON, EPSTEIN, LUCAS, REYES, CHANG, STERN, SHIMSKY, LEVENBERG, KAY, SIMONE, LAVINE, ROZIC, LEE, CUNNINGHAM, LUNSFORD, CRUZ, RAGA, STECK -- read once and referred to the Committee on Insurance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, in relation to health insurance coverage for acupuncture services

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subsection (1) of section 3221 of the insurance law is amended by adding a new paragraph 23 to read as follows:

(23) (A) Every large group contract delivered or issued for delivery in this state which provides medical coverage that includes coverage for physician services in a physician's office and every large group contract which provides major medical or similar comprehensive-type coverage shall provide, upon the prescription of a health care provider acting within the provider's scope of practice pursuant to title eight of the education law, coverage for acupuncture treatment as defined in section eighty-two hundred eleven of the education law.

(B) Acupuncture treatment and services may be subject to reasonable deductible, co-payment and co-insurance amount, reasonable fee or benefit limits, and reasonable utilization review.

§ 2. Section 4303 of the insurance law is amended by adding a new subsection (ww) to read as follows:

(ww) (1) Every large group contract delivered or issued for delivery in this state which provides medical coverage that includes coverage for physician services in a physician's office and every large group contract which provides major medical or similar comprehensive-type coverage shall provide, upon the prescription of a health care provider acting within the provider's scope of practice pursuant to title eight

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 of the education law, coverage for acupuncture treatment as defined in
2 section eighty-two hundred eleven of the education law.

3 (2) Acupuncture treatment and services may be subject to reasonable
4 deductible, co-payment and co-insurance amount, reasonable fee or bene-
5 fit limits, and reasonable utilization review.

6 § 3. This act shall take effect on the ninetieth day after it shall
7 have become a law and shall apply to policies and contracts issued,
8 renewed, modified, altered or amended on or after such effective date.